

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT BETWEEN CATALYST TECHNOLOGIES PVT. LTD. AND MERIDIAN ENTERPRISES LLP

Between: **Catalyst Technologies Pvt. Ltd.** (Disclosing Party) and **Meridian Enterprises LLP** (Receiving Party)

Effective Date: 2024-10-11

Termination Date: 2027-10-11

Governing Law: the laws of the State of Delaware

1. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

2. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

3. Audit Rights

Meridian Enterprises LLP or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Catalyst Technologies Pvt. Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Catalyst Technologies Pvt. Ltd.'s operations. The cost of the audit shall be borne by Meridian Enterprises LLP, unless the audit reveals an overcharge of more than five percent (5%), in which case Catalyst Technologies Pvt. Ltd. shall bear the cost.

4. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,34,00,000 (Rupees Seventy-seven lakh Only). This limitation does not apply to obligations arising from Clause 2 or indemnification obligations.

5. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

6. Subcontracting

Catalyst Technologies Pvt. Ltd. shall not subcontract any material part of the Services without the prior written consent of Meridian Enterprises LLP. Where subcontracting is permitted, Catalyst Technologies Pvt. Ltd. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 5 and Clause 2.

7. Intellectual Property

All intellectual property rights in deliverables created specifically for Meridian Enterprises LLP under this Agreement shall vest in Meridian Enterprises LLP upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Catalyst Technologies Pvt. Ltd. grants Meridian Enterprises LLP a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Meridian Enterprises LLP's internal business purposes.

8. Scope of Services

Catalyst Technologies Pvt. Ltd. shall provide to Meridian Enterprises LLP the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

9. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

10. Indemnification

Catalyst Technologies Pvt. Ltd. shall indemnify, defend, and hold harmless Meridian Enterprises LLP and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Catalyst Technologies Pvt. Ltd.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

11. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

12. Term

This Agreement shall commence on the Effective Date, 2024-10-11, and shall continue until 2027-10-11, unless earlier terminated in accordance with Clause 8. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

13. Insurance

Catalyst Technologies Pvt. Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 77,00,000 (Rupees Seventy-seven lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 77,00,000 (Rupees Seventy-seven lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Catalyst Technologies Pvt. Ltd. shall provide evidence of such insurance upon request.

14. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Catalyst Technologies Pvt. Ltd. shall process personal data of Meridian Enterprises LLP's employees or customers only as necessary to perform the Services and strictly in accordance with Meridian Enterprises LLP's written instructions. Catalyst Technologies Pvt. Ltd. shall implement appropriate technical and organisational measures to protect such data.

IN WITNESS WHEREOF

Disclosing Party

Catalyst Technologies Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Receiving Party

Meridian Enterprises LLP

Signature: _____

Name: _____

Title: _____

Date: _____